



Child Protection Policy

Through this policy, ASPIRE expresses its commitment to prevent any type of abuse and to guarantee a healthy and safe environment for every child engaged in and around our program. The policy applies to all individuals associated with ASPIRE, in protecting, promoting and securing the rights of all children at all the times, at all levels and in whatever capacity one operates.

How ASPIRE is doing its role for child protection

Working in collaboration with Child Rights Protection Forum (CRPF), Child Protection Committee (CPC), and Integrated Child Development Services (ICDS), SMC members, ASPIRE do the protection of children and their right to education. This includes getting them Aadhaar cards, and financial sponsorship towards the fulfilment of right to education of a child.

ASPIRE is committed to protecting the safety, well-being of children and to help them in getting basic right to education. Thus, ASPIRE has adopted this Child Protection Policy (CPP) requiring organisation representatives to conduct themselves appropriately with the children who participate in ASPIRE related programs and take reasonable measures to ensure the safety of such children.

Policy Statement

This policy aims to define the behaviours and actions that constitute child abuse. Additionally, it will lay out the organisations expectations for behaviour, the scope of application of the policy and guidelines for reporting and redressal.

- ASPIRE is committed to actively prevent child abuse.
- ASPIRE strives to create, develop and nurture a culture where all children are safe and protected.



- ASPIRE strives to ensure that individuals who abuse children are not involved in any way in its operations.
- ASPIRE takes exemplary stringent measures against any associates who commit child abuse.

Why A Child Protection Policy?

Safeguarding every child of our organisation committed to our care, directly or indirectly, is not only our duty and responsibility but also our priority. This Child Protection Policy is our commitment to respect the rights of every child and to contribute to the welfare, protection and empowerment of each child. By spelling out these policy matters, we know we are applying, interpreting and implementing in our interventions and activities, the laws enacted in our country for ensuring protection and promotion of children.

Child Abuse

Any harm caused to a child, intentionally or unintentionally is child abuse. This includes emotional, physical, sexual, or spiritual forms of abuse. According to the World Health Organization, "Child abuse or maltreatment" constitutes all forms of physical and/or emotional ill-treatment, sexual abuse and sexual exploitation, neglect or negligent treatment, commercial or other exploitation of a child and any action resulting in actual or potential harm to a child's health, survival, development or dignity in the context of a relationship of responsibility, trust or power." Inherent in the various definitions of child abuse are the concepts of trust, abuse of power, the child's inability to consent or make a choice, the age differential between the perpetrator and the child, the cognitive, emotional, psycho-sexual development level of the child and the intent of gratification.

Types of Abuse

Child Abuse can be categorized into different types:



Child to Child Abuse

At times children abuse other children. Allegations or concerns regarding the abuse of a child by another child need to be responded to with particular sensitivity, taking into account the vulnerabilities of the alleged perpetrator, who in this case is also a child. Nevertheless, they have to be dealt with through the child protection procedures, and in accordance with the provisions of Juvenile Justice (Care and Protection of Children) Act, 2015. Working with children who have committed abuse requires an effective approach which ensures the protection of children affected, while at the same time supporting the child in challenging and changing his/her behaviour.

Emotional Abuse

Any type of persistent emotional ill-treatment of a person, so as to cause severe and persistent adverse effect on one's emotional development and well-being, would be emotional abuse. It includes a failure to provide a supportive environment for a child so that they may develop a full and healthy range of emotional abilities. It may involve conveying to children that they are worthless or unloved, inadequate or valued only insofar as they meet the needs of another person. This may be expressed verbally or nonverbally or via electronic or written communication or any other form. Emotional abuse includes verbal abuse, mental abuse, and psychological maltreatment. This can include Associates using extreme and/or forms of punishments threatening or terrorizing a child. All forms of abuse invariably result in emotional abuse. Acts include restriction of movement, patterns of belittling, denigrating, scapegoating, threatening, scaring, discriminating, ridiculing or other non-physical forms of hostile or rejecting treatment.

Neglect

Neglect is the persistent failure or deliberate denial by a parent or caregiver to provide a child with the necessities for its good health and development. Child Neglect is abandonment of a child by the responsible Associate. It is depriving the child of care by not providing appropriate and necessary food, shelter, clothing, medical care and supervision. Child Neglect is an act of omission or commission leading to the denial of a child's basic needs. Neglect can be physical, educational, emotional, spiritual or psychological. Physical neglect entails denial of food,



clothing, appropriate medical care or supervision. It may include abandonment. Educational neglect includes failure to provide appropriate schooling or special educational needs. Psychological neglect includes not providing emotional support and love to a child. (MWCD, Study on Child Abuse: India 2007) Children living with disabilities or special needs in programs and initiatives are a particularly vulnerable section of our initiatives and require special care and concern to ensure that their disability is not exploited by anyone and that they are able to access all the rights to realise their full potential. We hold ourselves responsible that all children in our class are free from our neglect

Exploitation

Commercial or other exploitation of a child refers to use of the child in work or other activities for the benefit of others. This includes, but is not limited to, child labour and child prostitution. These activities are to the detriment of the child's physical or mental health, education, or spiritual, moral or social-emotional development.

Physical Abuse

As defined by the Ministry of Women and Child Welfare, Govt of India, in its study on Child Abuse, physical abuse is "inflicting of physical injury upon a child. This may include slapping, hitting, punching, shaking, kicking, beating or otherwise harming a child in any way physically even when the parent or caretaker may not have intended to hurt the child. It may, even be the result of over disciplining or physical punishment that is inappropriate to the child's age." (MWCD, Study on Child Abuse: India 2007)

The intentional use of physical force against a child that results in or has a high likelihood of resulting in harm to the child's health, survival, development or dignity. This includes hitting, beating, kicking, shaking, biting, strangling, scalding, burning, poisoning and suffocating.

Sexual Abuse

The Protection of Children from Sexual Offences Act (POCSO), 2012 is one of the Indian government's most progressive laws, to combat sexual violence against children. POCSO qualifies penetrative sexual assault on a child below the age of 12 as aggravated penetrative sexual assault, a crime punishable with a fine and a minimum term of rigorous imprisonment



for 10 years, which can be extended to life imprisonment. Such sexual offences include penetrative sexual assault (including rape), non-penetrative sexual assault (including touching the private parts of a Child), sexual harassment (including stalking a Child, showing a Child pornography and making a Child exhibit his/her body) and using a Child for pornographic purposes (including storing of pornographic material involving a Child for commercial purposes). An abetment of and an attempt to commit a sexual offence under the Protection of Children from Sexual Offences Act, 2012 are also considered to be offences. Certain offences under the Protection of Children from Sexual Offences Act, 2012 are considered to be aggravated offences and are subject to stringent punishments. For instance, sexual assault committed by persons in a position of trust or authority in relation to the Child (including relatives of the Child, persons managing or working in an educational institution, police officers or public servants) are considered to be aggravated offences.

Sexual abuse of a child, (according to American Psychological Association) is the dominant position of an adult that allows him or her to force or coerce a child into sexual activity. Child sexual abuse is not solely restricted to physical contact; such abuse could include non-contact abuse, such as exposure, voyeurism, and child pornography. The UNICEF has defined Child Sexual Abuse as contacts or interactions between a child and an older or more knowledgeable child or adult (a stranger, sibling, or person in authority, a parent or a care-taker) when the child is being used as an object of gratification for the older child or adult's sexual needs. These contacts or interactions are carried out against the child using force, trickery, bribes, threats or pressure. (UNICEF 2003)

Verbal Abuse

Any kind of irresponsible use of words that hurt the dignity of children would be considered verbal abuse. It refers to the use of words by an Associate that leave a lasting negative emotional impact in a child or hurts the sensitivity of a child.



Guiding Principles

ASPIRE responds to child abuse concerns keeping the following principles in mind:

1. Safety and security of the child is paramount. Hence, all steps necessary for the same would be ensured by ASPIRE.
2. All further steps to address the child abuse concerns would be in the best interest of the child.
3. All investigation into suspected or actual child abuse cases would be strictly confidential and on a need to know basis.

In view of implementing the policy, ASPIRE will do the following:

Awareness and Acknowledgement

We will ensure that all staff and others are aware of the problem of child abuse and the risks to children.

- A. Raise awareness of child abuse and its risks for staff and partners.

ASPIRE shall maintain an open culture where staffs, children, parents or guardians feel comfortable to express concerns about child protection issues and issues of dealing with children and the concerns will be taken seriously and treated sensitively.

- B. Acknowledge the need and importance of child protection

ASPIRE will ensure that all staff and anyone associated with it have understood the Child Protection Policy and signs a copy of the same in acceptance and acknowledgement.

- C. Level of contact

All staff and volunteers involved in any way in ASPIRE would be assessed for their Level of Contact with children, based on the frequency, duration, nature and scope of their involvement with children. Accordingly, each would be guided and made aware of the inherent risks and perceptions regarding safe conduct with children as well as helped with safe practices, feedback and help regarding appropriate conduct in any interaction with children.



Prevention

Provide guidance on how to protect children from abuse - we will ensure, through awareness and good practice, that staff and others minimize the risks to children.

We will strive to ensure that sufficient space is provided for the children to give vent to their energy, develop their talents and learn the basics of social living and spiritual and holistic well being.

Reporting

Set up and adhere to a clear and simple reporting procedure - we will ensure that staff, volunteers and associates and others are clear what steps to take where concerns arise regarding the safety of children.

ASPIRE takes all concerns raised seriously, and takes appropriate action. The organisation has defined clear reporting and responding procedures, internal communication lines, and the roles and responsibilities of all people involved.

Reporting child protection concerns is not an easy thing to do but it is vitally important that everyone understands the need for this to happen as soon as an incident occurs or a concern comes to light, especially if it involves a Staff, Volunteer or Associate of ASPIRE.

If any staff member is aware of or suspects any child abuse issue in the institution, he /she is duty bound to report it to the appropriate authority. As it is a mandatory requirement, failure to do so will result in disciplinary action. Staff members should speak up on any case of abusive behaviour to the appropriate authorities, without gossip mongering or indulging in behaviour that could adversely affect the dignity, character or reputation of the persons concerned.

Responding

Ensure clear action is taken when child abuse is suspected or reported - we will ensure that action is taken to support and protect children where concerns arise regarding possible abuse.



All forms of child abuse are taken seriously, without exception in all ASPIRE programs, and are to be responded according to the gravity of the offence. ASPIRE ensures that there is always a response, regardless of whether the abuse committed is considered large or small. By responding we guarantee that a transparent and fair procedure is followed, so that nobody is falsely convicted and the rights of everyone involved are protected.

As prescribed by law, the institutions, programs or other initiatives of the ASPIRE will fully cooperate with legal authorities in case of any allegation of child abuse against anyone working in the institutions and will support any ensuing investigation by any recognized authority.

Scope of Application of the Child Protection Policy

This CPP is applicable to all part time and full time employees (including but not limited to Staff, Fellows, Interns) of ASPIRE and any other person who has been bound to the Child Protection Policy as per their contractual agreement with ASPIRE.

Expected Conduct

Expected Behaviour and Actions

- Treat every Child with empathy and respect, regardless of his/her race, colour, gender, sexuality, language, religion, religious belief, heritage, political/other opinion, national/ethnic/social origin or property/disability/birth/other status.
- Listen to Children and respect their views.
- Ensure that physical contact with a Child is respectful, culturally appropriate and essential to the purpose of your interaction with the Child.
- Establish an atmosphere that fosters the development of Children through your actions and words.
- Always take permission from Children before taking their photos or videos.
- Keep all personal information about Children or their parents/guardians confidential and secure and ensure that such information is dispensed to only those individuals who are legitimately entitled to it.



- Attend all the applicable training sessions and workshops on the CPP and Child-related laws conducted by the Organization. Ensure you implement the lessons learned from such sessions and workshops.

Prohibited Behaviour and Actions

- Do not use language or behaviour towards Children that is inappropriate, harassing, abusive, sexually provocative, demeaning, intimidating, offensive, discriminatory or culturally insensitive.
- Do not use any form of corporal punishment on Children.
- Do not place a Child at risk of harm or abuse and do not harm or abuse any Child physically, emotionally or sexually.
- Do not share with or show Children (electronically or in any other form) inappropriate content including pornographic material or material encouraging crime, violence, terrorism, racism, sexism, self-harm, suicide, cruelty and gambling.
- Do not develop, induce or support physical or sexual relationships with Children, in any way.
- Do not use or encourage the use of alcohol, drugs, cigarettes or other intoxicating substances while interacting with Children and from providing such intoxicating substances to Children.
- Do not develop any form of relationship or arrangement (financial or otherwise) with Children which could in any way be deemed to be exploitative or abusive. Do not use Child labour in any form.

ASPIRE's Measures to Prevent Child Abuse

1. On-Boarding Staff and Fellows

All Fellows and Staff will undergo child protection awareness training. Attempt to ensure that visitors to a school are accompanied by a Staff Member or a Fellow.

2. Where the organization undertakes any research on Children or collects data on them, ensuring that Children are not harmed or traumatized in any way during the process



Child protection programme: interventions

ASPIRE establishes Children Groups, bringing together vulnerable children to collectively work towards solutions to uphold child rights, preventing cases of child marriage, child trafficking, child abuse and child labour. It navigates map out-of-school children, and those who are involved in child labour to schools through enrolment drives. It also coordinates with district and state level authorities to ensure right implementation of laws so that children in the area are kept safe.

Conclusion

The NGO is tirelessly working for the protection of children pushed into child labour, children facing abuse in the community, children trafficked, children affected by a calamity or emergency situations. It rescues them from children facing various kinds of harms – abuse, neglect, exploitation, physical danger and violence. Executing programmes in India's remotest parts, the NGO is driven by the premise of ensuring happy and safe childhoods for all children.

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Approved by

(Signature)

